



lauren moore <[REDACTED]>

Email 2 from Justin Madders MP re: Government Ministers and Ofqual (Case Ref: [REDACTED])

1 message

Justin Madders <justin.madders.mp@parliament.uk>

Thu, Sep 25, 2025 at 11:08 AM

To: [REDACTED]

Hi Lauren,

As mentioned in our other email today we are keeping these subjects separate to help with email threads and future communication.

Thank you for your email below. We have noted the content and also the information sent to you by Ofqual in their letter of 19th September in response to your legal challenge.

We have reviewed all of the information on file and considered your direct conversations with Justin. As you know we have already approached the Secretary of State for Education and had a reply from the Minister about your proposals. Ofqual have also supplied detailed information on their position. MPs are not able to get involved in legal matters and we have already raised the issues with the Government.

We are aware that you have a number of queries outstanding that you do not accept have been adequately answered. For the reasons set out above we cannot request the meetings that you want, and some of the information in those requests are not up to date in terms of Government Ministers.

As mentioned before, you clearly have significant technical knowledge and so it would be worth you discussing your ideas and understanding of legislation with education experts. The two advice services below for example provide individual support for parents with their children's education, but also have legal knowledge that may be able to support and clarify the position around awarding and regulatory bodies and the organisations that you want to establish. They do lobbying and research around policy changes so we feel you would find them of interest.

- 1) Coram Children's Legal Centre: <https://childlawadvice.org.uk/>
- 2) IPSEA: <https://www.ipsea.org.uk/Pages/Category/service-overview>

On other issues, we still have outstanding enquiries on your behalf with the DWP. We will continue to pursue these and let you know as soon as we have any further replies.

Lastly, for your information our response times to constituents enquiries is seven days. In fairness to all constituents we will reply to further queries from you within this timeframe so that you know when you can expect to hear from us.

Kind regards,

Office of Justin Madders MP

From: lauren moore <[REDACTED]>
Sent: 19 September 2025 19:53
To: "MADDERS, Justin" <justin.madders.mp@parliament.uk>
Subject: Fwd: Ofqual - response to letter before claim [REDACTED]

Dear Justin,
Further to Ofqual's legal response of **19 September 2025** (attached), I require your immediate action.
Position now established (by Ofqual's own correspondence):

- The **RQF** (and previously the **QCF**) was **never designed or structured** for **SEN/neurodiverse learners with EHCPs** .
- Ofqual relies solely on " **reasonable adjustments** " to mainstream qualifications.

- There is **no SEN-specific pathway** and **no requirement** for SEND expertise in recognition criteria.
- This confirms a **systemic, historic gap** (pre-2015 QCF and post-2015 RQF).

Legal consequences (continuing breaches):

- **Equality Act 2010** : ss.19, 149 (indirect discrimination; PSED).
- **Children & Families Act 2014** : Part 3 (EHCP provision).
- **HRA 1998** : P1 Art.2 & Art.14.
- **UNCRPD Art.24** : equal access to vocational training.

Remedy (already built):

I am the **founder and creator** of the **LUNA SEN Regulator**, establishing a **Specialist RQF (SRQF)** and the **LUNA Learning Record (LLR)** for 14–16 SEN/EHCP learners, UK-wide. It is AI-managed (no public staffing/conflict) with independent EQA visits.

What I need you to do now:

1. **Write to Gillian Keegan (Secretary of State for Education)**
 - Seek **formal recognition** of the **LUNA SEN Regulator** and **SRQF** as the lawful remedy to the acknowledged gap.
 - Confirm **UK-wide scope** (England, Wales, Scotland, NI) given equality and UNCRPD duties.
2. **Write to Bridget Phillipson (Shadow Secretary of State for Education)**
 - Request **opposition scrutiny** and support to ensure the government cannot delay or deflect.
3. **Write back to Ofqual's legal team (copy me)**
 - Record that Ofqual has **never** provided an SEN-structured framework and has relied only on adjustments.
 - Ask for a **clear written confirmation** of (a) no SEN pathway; (b) no EHCP-embedded design; (c) reliance on reasonable adjustments.
4. **Support with Cabinet Office (Naming & Approvals Committee)**
 - Back my appeal for luna-regulator.gov.uk (or luna-senregulator.gov.uk) as essential for public confidence and equal access.

Attachments for your letters:

- Ofqual legal response (19 Sept 2025).
- Annex A – Briefing Note (SRQF/LLR and statutory gap).

Given the prolonged delays and my health, I need your confirmation today that you will send these letters and copy me on the correspondence.

Kind regards,

Lauren Moore

Founder & Creator – LUNA SEN Regulator

----- Forwarded message -----

From: **Kieran Laird** <kieran.laird@gowlingwlg.com>

Date: Fri, Sep 19, 2025 at 6:08 PM

Subject: Ofqual - response to letter before claim [GOWLG-LEGAL01.594878.2035243.FID4583718]

To: [REDACTED] <[REDACTED]>

Cc: Lara Epsley <lara.epsley@gowlingwlg.com>

Dear Ms Moore

We are instructed by Ofqual with respect to your letter before claim dated 12 September 2025.

Please find attached Ofqual's response.

Please direct any future correspondence on this matter to myself and Lara Epsley (copied).

Kind regards

Kieran Laird

Partner – Public Law & Regulation Team

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Kieran . Laird@gowlingwlg.com

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3 attachments

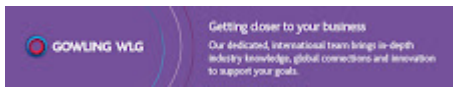


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Ofqual - response to letter before claim (Lauren Moore) - 19 September 2025.pdf
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